

4-953. Petition to expunge arrest records and public records; upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield,

No.

Petitioner.

**PETITION TO EXPUNGE ARREST RECORDS AND PUBLIC RECORDS UNDER
NMSA 1978, SECTION 29-3A-5 [~~NMSA 1978~~]
(Upon Conviction)**

Petitioner, [] unrepresented by counsel/[] represented by counsel (*select one*), under NMSA
1978, Section 29-3A-5 [~~NMSA 1978~~], respectfully moves the Court to expunge the arrest records
and public records related to the case and charge(s) below.

1. Information about Petitioner:

Date of Birth: 1961-12-31

Current Mailing Address: 1188 Upper Notch Crossing Rd Apt 14B

City: Truth or Consequences State: NM Zip Code: 87901

Home Phone #: _____ Work Phone #: _____ Cell #: _____

Other names or aliases by which Petitioner has been known

(*Include prior names, nicknames, or aliases, especially if your arrest records may reflect a different name*):

2. [] Petitioner has no pending expungement cases in the Seventh Judicial District.

[] Petitioner has the following pending expungement case or cases in the Seventh Judicial
District (*provide expungement case numbers for any expungement cases that may be currently*
pending before the Seventh *Judicial District*
Court): _____

3. ☐ Petitioner has never applied for expungement and been denied.
☐ Petitioner has applied for expungement and been denied in the following expungement cases (*provide the expungement case numbers*): _____

4. The following case(s) and records are the subject of Petitioner's Petition to Expunge:
District Court case number(s): D-721-CR-2011-00094
Metropolitan/Magistrate/Municipal Court case number(s): _____
Law Enforcement Agency case number(s): _____
Arrest number(s): _____

5. The following appellate court cases(s) are related to Petitioner's Petition to Expunge:
Court of Appeals case number(s): _____
Supreme Court case number(s): _____

~~[5.]~~ 6. Petitioner was convicted of the following charges: (*Complete for each offense that you are seeking to expunge. Include additional pages if necessary.*)

(1) Date of offense/arrest: _____
Name and statute/ordinance number of offense: _____
Date sentence completed: _____
Date fines and fees paid: _____

☐ Check if additional pages attached.

~~[6.]~~ 7. ☐ Petitioner has no cases related to the charges sought to be expunged.
☐ The following cases are related to the charges sought to be expunged:
(*Include case names and numbers for any cases that were joined either with a co-defendant or joined as the result of a plea.*)

~~[7.]~~ 8. ☐ There is currently no other charge(s) or proceeding(s) pending against Petitioner.

~~[8.]~~ 9. Petitioner has had no other criminal convictions (measured from the date of completion of a sentence for a conviction in *any jurisdiction*) for a period of:

☐ Two years
☐ Four years
☐ Six years
☐ Eight Years
☐ Ten or more years

~~[9.]~~ 10. ☐ Petitioner has paid all fines and fees and has fulfilled all victim restitution ordered for the charges Petitioner seeks to expunge.

~~[10.]~~ 11. ☐ Petitioner is not seeking to expunge convictions pertaining to any of the following:

- An offense committed against a child;
- An offense causing great bodily harm or death;
- A sex offense as defined in NMSA 1978, Section 29-11A-3 ~~[NMSA 1978]~~;
- An offense for embezzlement under NMSA 1978, Section 30-16-8 ~~[NMSA 1978]~~;
or
- An offense involving driving while under the influence of intoxicating liquor or drugs.

~~[11.]~~ 12. Petitioner believes justice will be served by the Court granting the Petition and states the following in support: *(Explain why expungement is being sought, e.g., employment, licensure, housing, and any adverse consequences that have been suffered by Petitioner or will be suffered if the Petition is not granted. Attach additional pages if necessary.)*

☐ Check if additional pages attached.

~~[12.]~~ 13. Petitioner asks this Court for an Order to Expunge arrest records and court records in the custody of the following below:

- ☐ District Court in the Seventh Judicial District;
- ☐ County Sheriff's Department;
- ☐ District Attorney for the Judicial District;
- ☐ New Mexico Department of Public Safety;
- ☐ Law Enforcement Agency (*name of agency that arrested Petitioner*) ;
- ☐ Metropolitan/Magistrate/Municipal Court in (*location*);
- ☐ New Mexico State Police Investigations Bureau;
- ☐ Other:

~~[13.]~~ 14. The charges sought to be expunged were originally disposed of or originated in (*select one*) ☐ District Court in the Seventh Judicial District

- ☐ Metropolitan Court in (*location*)
- ☐ Magistrate Court in (*location*)
- ☐ Municipal Court in (*location*)

~~[14.]~~ 15. ☐ A copy of this Petition, when filed with the Court, will be mailed by first class United States mail to:

- (1) The District Attorney in the Judicial District
(The District Attorney in the Judicial District where Petitioner's charge originated)

(Address)

(2) The New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico 87504-1628

(3) _____
(The law enforcement agency that arrested Petitioner)

(Address)

~~[15.]~~ 16. ☐ Petitioner has included copies of Petitioner's FBI and DPS Record of Arrest and Prosecution (RAP) sheets, dated no later than ninety (90) days prior to the filing of the petition.

~~[16.]~~ 17. Petitioner has included the following additional documentation related to Petitioner's criminal history: *(Petitioner should attach the documentation detailing the sentences for the charges Petitioner is seeking to expunge. If there have been additional convictions, additional paperwork may be required.)*

- a. Documentation showing completion of Petitioner's sentences for the convictions Petitioner is seeking to expunge;
- b. Documentation showing completion of sentences for any other convictions that Petitioner has served;
- c. Documentation showing final payment of any fines and fees owed related to the convictions Petitioner is seeking to expunge;
- d. Documentation showing completion of any victim restitution ordered as a result of the convictions Petitioner is seeking to expunge;
- e. Other: _____
(list any other documentation provided with the petition).

~~[17.]~~ 18. ☐ Petitioner wishes to attend any hearings in this matter by telephonic or other electronic means as provided for in Rule 1-077.1(J) NMRA.

SIGNATURE SECTION

I, Petitioner, affirm under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Maria-Alejandra O'Shaughnessy-Whitfield

Printed name of Petitioner

Date

Signature of Petitioner

Mailing Address

**CIVIL FORMS
4-953**

**Supreme Court Approved
October 31, 2025**

1	Telephone Number	Email
2		
3		
4	Attorney Name <i>(if applicable)</i>	Date
5		
6	Attorney Signature	
7		
8	Mailing Address	
9		
10	Telephone Number	Email
11		
12	[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending	
13	or filed on or after January 28, 2022; <u>provisionally adopted form approved as amended by</u>	
14	<u>Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases filed on or after</u>	
15	<u>December 31, 2025.</u>]	

4-956. Certificate of service; expungement of records upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield,

No.

Petitioner.

CERTIFICATE OF SERVICE

***(Required for Petitions filed under Section 29-3A-5 NMSA 1978 (Expungement of
Records upon Conviction))***

I hereby certify that on the _____ (day) of _____ (month) _____ (year), an
endorsed copy of the Petition to Expunge New Mexico Arrest Records and Public Records under
Section 29-3A-5 NMSA 1978, filed on _____ (date), and this Certificate of Service
were mailed via first-class United States mail to:

- ☐ The New Mexico Department of Public Safety
P.O. Box 1628, Santa Fe, New Mexico 87504-1628
- ☐ The district attorney in the _____ Judicial District

(Address)
- ☐ The law enforcement agency that arrested Petitioner

(Address)

☐ Petitioner is pro se

OR

☐ Petitioner is represented
by counsel

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Petitioner Printed Name

Petitioner Address

Attorney Printed Name

Attorney Address

Attorney Telephone Number

Petitioner Telephone Number

Petitioner Signature

1 Date of Signature 4 _____
2 _____ 5 Date of Signature
3 Attorney Signature

6
7 USE NOTES
8

9 This certificate of service must be filed with the district court.

10
11 [Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending
12 or filed on or after January 28, 2022; provisionally adopted form approved by Supreme Court
13 Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31,
14 2025.]

4-960. Notice of completion of briefing; upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield,

No.

Petitioner.

NOTICE OF COMPLETION OF BRIEFING

(for use with petitions filed under Section 29-3A-5 NMSA 1978 (Expungement of Records upon Conviction))

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expunge Arrest Records and Public Records and the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the _____ Judicial District;

☐ The New Mexico Department of Public Safety;

☐ The law enforcement agency that arrested Petitioner.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District Attorney:

☐ Has filed a Notice of Non-Objection; [~~or~~]

☐ Has filed an objection; or[-]

☐ Has not filed a response.

☐ The New Mexico Department of Public Safety:

☐ Has filed a Notice of Non-Objection; [~~or~~]

☐ Has filed an objection; or[-]

☐ Has not filed a response.

☐ The law enforcement agency that arrested Petitioner:

☐ Has filed a Notice of Non-Objection; [~~or~~]

☐ Has filed an objection; or[-]

☐ Has not filed a response.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.3 NMRA) with this Notice of Completion of Briefing.

Maria-Alejandra O'Shaughnessy-Whitfield

Printed name of Petitioner

Signature of Petitioner

Mailing Address

Telephone Number

Date

Attorney Name *(if applicable)*

Attorney Signature

Mailing Address

Telephone Number

Email

CERTIFICATE OF SERVICE

I hereby certify that on this _____ day of _____, _____ this Notice of Completion of Briefing was mailed by United States first class mail and addressed to:

(The District Attorney in the _____ Judicial District)

(Address)

(Telephone)

AND

New Mexico Department of Public Safety

P.O. Box 1628, Santa Fe, New Mexico, 87504-1628

(505) _____

AND

(The law enforcement agency that arrested Petitioner)

(Address)

(Telephone)

Signature of person sending paper

Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

4-960.3. Affirmation in support of expungement; upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, No.
Petitioner.

**AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Conviction)**

I, Maria-Alejandra O'Shaughnessy-Whitfield, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-5 (2019) NMSA 1978 (Expungement of Records upon Release upon Conviction), and hereby affirm the following:

1. ☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

AND

2. ☐ I have had no criminal convictions against me in the last ten (10) years.

OR

- ☐ The most recent criminal conviction against me was: (Provide date of conviction, jurisdiction, case number, offense of conviction, and the date you finished serving your sentence for the conviction)

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

Maria-Alejandra O'Shaughnessy-Whitfield

(Petitioner Signature)

(Print Name)

Street Address

City

State

Zip Code

(Telephone)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]

4-960.1. Notice of hearing.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF Sierra

Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner. No.

NOTICE OF HEARING

Petitioner may be entitled to expungement of arrest records or public records under the Criminal Record Expungement Act, Sections 29-3A-1 to -9 NMSA 1978. A hearing in this matter is set before the Honorable _____ as follows:

1. Date of Hearing: _____
2. Time of Hearing: _____
3. Length of Hearing: _____
4. Place of Hearing: _____

5. Matter(s) to be heard: _____

HONORABLE _____

By _____

TCAA

PARTIES ENTITLED TO NOTICE:

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner Name

Petitioner Address

Petitioner Telephone Number

Petitioner Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

Name

Agency (if applicable)

Address

Telephone Number

Email Address

USE NOTES

For the purpose of this form, the parties entitled to notice include the petitioner and any party that filed and served objections to the petition for expungement pursuant to Rule 1-077.1(G)(1) NMRA no later than sixty-three (63) days from the date of service. See Rule 1-077.1(G)(1) (providing sixty (60) days for a party entitled to notice to file an objection); Rule 1-077.1(E)(3) NMRA (providing for service by mail for actions filed pursuant to Rule 1-077.1); Rule 1-006(C) (providing for three (3) additional days where service is made by mail).

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

STATE OF NEW MEXICO
COUNTY OF Sierra
Seventh JUDICIAL DISTRICT COURT

In re Maria-Alejandra O'Shaughnessy-Whitfield,

No.

Petitioner.

**ORDER ON PETITION TO EXPUNGE ARREST RECORDS AND
PUBLIC RECORDS PURSUANT TO NMSA 1978, SECTION 29-3A-5 (2019) (Conviction)**

THIS MATTER came before the Court on Petitioner's Motion to Expunge Arrest Records and Public Records Pursuant to Section 29-3A-5 (*Conviction*). The Court having reviewed the Petition, examined the record, considered any objections filed by the District Attorney, the Department of Public Safety (DPS), the law enforcement agency that arrested Petitioner, and any other person or agency, **FINDS and ORDERS** as follows:

1. ☐ Petitioner was convicted and Petitioner completed any sentence and payment of any fines or fees owed to the state for the conviction; no other charge or proceeding is pending against Petitioner; justice will be served by an order to expunge arrest records and public records; Petitioner has fulfilled any victim restitution ordered by the court in connection with Petitioner's conviction; and no other criminal conviction has occurred for a period of:

(check applicable time period based upon charges expunged)

- ☐ **two years** if the petition relates to a conviction for a violation of a municipal ordinance or a misdemeanor not otherwise described in this list;
- ☐ **four years** if the petition relates to a misdemeanor conviction for aggravated battery as provided in NMSA 1978, Section 30-3-5(B) (1969) or to a conviction for a fourth degree felony not otherwise described in this list;
- ☐ **six years** if the petition relates to a conviction for a third degree felony not otherwise described in this list;
- ☐ **eight years** if the petition relates to a conviction for a second degree felony not otherwise described in this list; or
- ☐ **ten years** if the petition relates to a first degree felony or for any offense provided in the Crimes Against Household Members Act, NMSA 1978, Section 30-3-10 to -18 (2009).

2. ☐ Petitioner's request is denied for all charges sought to be expunged.¹

OR

- ☐ Petitioner's request to expunge is denied for the following offenses:²

3. Petitioner is not entitled to relief under Section 29-3A-5 because³

- ☐ Petitioner has failed to provide the required information and the petition is summarily dismissed WITHOUT PREJUDICE.

- ☐ Petitioner's records are not legally eligible for expungement because

☐ There is a charge or proceedings pending against Petitioner;

☐ Petitioner has not fulfilled victim restitution ordered by the court in connection with Petitioner's conviction;

☐ Petitioner has had another criminal conviction within the time period for the charges sought to be expunged.

- ☐ Venue is improper because the charges did not originate in this district.

- ☐ Taking into consideration the nature and gravity of the offense; Petitioner's age, criminal history, and employment history; the length of time that has passed since the offense was committed and sentence completed; the specific consequences to Petitioner if the Petition is denied; and more specifically _____

the Court finds that justice will not be served by an order to expunge.

- ☐ Other: _____

4. ☐ Petitioner's request to expunge is granted for all charges requested.⁴

OR

¹ For use when the petition is denied in whole.

² For use when petition will be granted in part, and denied in part.

³ To be completed when any portion of the petition is denied.

⁴ For use when the petition will be granted in whole.

☐ Petitioner's request to expunge is granted only for the following charges⁵:

(Select from the following, as applicable)

IT IS THEREFORE ORDERED that Petitioner's Petition to Expunge Arrest Records and Public Records Pursuant to Section 29-3A-5 is

☐ **DENIED.**

☐ **GRANTED.**

☐ **GRANTED IN PART AND DENIED IN PART.**

(select as applicable for petitions granted in whole or in part)

☐ **IT IS FURTHER ORDERED** that, in accordance with Section 29-3A-5, the arrest records and public records specifically relating to

☐ all the charges requested in the Petition

☐ the following charges:

and contained in:

District Court case number: _____

Metropolitan Court case number: _____

Appellate Court case number: _____

Magistrate/Municipal Court case number: _____

Law Enforcement Agency case number: _____

Arrest number (from fingerprint card): _____ Date: _____

Including information posted on a court or law enforcement website

⁵ For use when the petition will be granted in part and denied in part.

SHALL BE EXPUNGED.

☐ **IT IS FURTHER ORDERED** that the following agencies shall expunge the necessary records within _____ days of the date of this Order, the proceedings shall be treated as if they never occurred, and upon inquiry in the matter, Petitioner and officials to whom this Order is directed may properly reply that “no such records exist with respect to such person.”

- ☐ District Attorney for the _____ district
- ☐ New Mexico Department of Public Safety
- ☐ Arresting agency _____
- ☐ Other: _____
- ☐ Other: _____
- ☐ Other: _____

☐ **IT IS FURTHER ORDERED** that the court clerk for the (*indicate the court that originally disposed of the charges*) ☐ District Court for the _____ Judicial District, ☐ Metropolitan Court in _____ (*location*), ☐ Magistrate Court in _____ (*location*), or ☐ Municipal Court in _____ (*location*) shall expunge the necessary records within _____ days of the date of this Order, the proceedings shall be treated as if they never occurred, and upon inquiry in the matter, Petitioner and officials to whom this Order is directed may properly reply that no such records exist with respect to such person.

Date: _____

District Court Judge

4-222. Application for free process and affidavit of indigency.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO
COUNTY OF Sierra
SIXTH JUDICIAL DISTRICT COURT

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner,

v.

No. D- _____ - _____ - _____

_____, Respondent.

APPLICATION FOR FREE PROCESS AND AFFIDAVIT OF INDIGENCY

I request that the court enter an order permitting me to file this case without prepayment of fees and costs and give upon my oath or affirmation the following statement.

My marital status is: Single ☐ Married ☐ Divorced ☐ Separated ☐ Widowed ☐

I request interpretation services: ☐ yes ☐ no (If yes, please describe what you need)

INFORMATION ABOUT MY FINANCES (check all that apply to you and fill in the blanks):

A. PUBLIC ASSISTANCE

☐ I do not receive public assistance (If you check this blank, go directly to Section B EMPLOYMENT/UNEMPLOYMENT).

☐ I currently receive the following public assistance in _____ County (please check all applicable public assistance programs): ☐ Temporary Assistance for Needy Families (TANF)

☐ Food Stamps

☐ Medicaid (for myself)

☐ General Assistance (GA)

☐ Supplemental Security Income (SSI)

☐ Public Housing

☐ Disability Security Income (DSI)

☐ Department of Health Case Management Services (DHMS)

☐ Other (please describe _____)

B. EMPLOYMENT/UNEMPLOYMENT

☐ I am currently unemployed and have been unemployed for ____ months in the past year. I am unemployed because _____.

☐ I receive unemployment benefits in the amount of \$ _____ per month.

☐ I have no income because I am unemployed.

☐ I am employed. I am paid \$ _____ per hour and work ____ hours per week. My employer's name, address and phone number is:

☐ I am married, and my spouse is unemployed and has been unemployed for ____ months in the past year because _____.

☐ My spouse receives unemployment benefits in the amount of \$ _____ per month.

☐ I am married, and my spouse is employed. My spouse is paid \$ _____ per hour and works ____ hours per week.

My spouse's employer's name, address and phone number is:

C. OTHER SOURCES OF INCOME *(Check all that apply)*

☐ I have income from another source not mentioned above.

☐ Child Support \$ _____

☐ Alimony \$ _____

☐ Investments \$ _____

☐ Community property from my spouse \$ _____

☐ Other _____ \$ _____

☐ I do not have any other sources of income.

☐ I am married, and my spouse has income from another source not mentioned above.

☐ Child Support \$ _____

☐ Alimony \$ _____

☐ Investments \$ _____

☐ Other _____ \$ _____

☐ Other _____ \$ _____

☐ I am married, and my spouse does not have any other sources of income.

☐ Another adult contributes to household income in the following amount: \$ _____

D. OTHER ASSETS (Please list other assets owned by you or your spouse that can be turned into cash. Do not include money you have in retirement accounts):

Cash on hand \$ _____
Bank accounts \$ _____
Income tax refund \$ _____
Other assets (describe below):
_____ \$ _____
_____ \$ _____

IF YOU DO NOT HAVE ACCESS TO YOUR OWN OR YOUR SPOUSE'S INCOME OR ASSETS, EXPLAIN WHY.

E. MONTHLY EXPENSES

House Payment/Rent \$ _____
Utilities \$ _____
Telephone \$ _____
Groceries (after food stamps) \$ _____
Car Payment(s) \$ _____
Gasoline \$ _____
Insurance \$ _____
Child Care \$ _____
Student and Consumer Loans \$ _____
Court-ordered family support obligations \$ _____
Other court-ordered payments \$ _____
Medical expenses \$ _____
Other _____ \$ _____

F. HOUSEHOLD

I live at _____,

and the head of the household is _____.

Other than myself, the other members of the household are:

<u>Name</u>	<u>Age</u>	<u>Employment</u>	<u>I Support</u>
_____	_____	_____	☐
_____	_____	_____	☐
_____	_____	_____	☐

This statement is made under oath. I hereby state that the above information regarding my financial condition is correct to the best of my knowledge. I hereby authorize the Court to obtain information from financial institutions, employers, relatives, the federal internal revenue service and other state agencies. If at any time the Court discovers that information in this application for free process was false, misleading, inaccurate, or incomplete at the time the application was submitted, the Court may require me to pay for any costs or fees that were waived under an order of free process that was granted based on the information in this application.

4

IF YOU ARE REPRESENTED BY AN ATTORNEY, YOUR ATTORNEY MUST SIGN THE FOLLOWING CERTIFICATE.

I, _____, hereby certify that I have not received any attorney
(Name of attorney)
fee to represent _____. If any attorney fee is paid to me, I understand
(Name of applicant) that I shall pay to the court clerk from such
attorney fee any court fees and costs that may be waived by the court.

(Attorney signature)

Address

City, State, Zip Code

Telephone/Fax Number

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011.]

4-223. Order for free process.

[For use with Supreme Court General Rule 23-114 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

SIXTH JUDICIAL DISTRICT COURT

_____, Petitioner,

v.

No. D-____-____-_____

_____, Respondent.

ORDER ON APPLICATION FOR FREE PROCESS

THIS MATTER having come before the court on Petitioner's application for free process and affidavit of indigency, or upon Petitioner's attorney's certificate supporting indigency and free process pursuant to Rule 23-114(B)(2) NMRA, and the court being otherwise advised in the premises, **FINDS** that:

☐ the applicant is entitled to free process in accordance with Rule 23-114(B)(2) NMRA.

☐ the applicant receives public assistance and is, therefore, entitled to free process.

☐ the applicant's annual gross income does not exceed _____ of the federal poverty guidelines, and the applicant is, therefore, entitled to free process.

☐ the applicant's annual gross income exceeds _____ of the federal poverty guidelines, but the applicant is not reasonably able to pay fees or costs and is, therefore, entitled to free process.

☐ on the basis of the applicant's available funds or annual gross income, the applicant is not entitled to free process.

THE COURT ORDERS that:

☐ the filing fee is waived.

☐ the filing fee is waived except for the \$ _____ alternative dispute resolution (ADR) fee.

☐ the applicant is granted free service of process by the Sheriff in _____ County, New Mexico for 1 2 3 4 5 or _____ summons(es), provided that the applicant first attempts service by certified mail pursuant to Rule 1-004 NMRA.

☐ the applicant is granted free service by the Sheriff in _____ County, New Mexico, of a temporary restraining order or _____.

☐ the applicant is to pay the filing fee on _____, 20____.

☐ interpretation services shall be provided to the applicant.

☐ free process is denied.

☐ Other:

Unless specifically granted above, this order of free process does not include the following costs: jury fees, certification fees, subpoena fees for witnesses, witness fees for hearings or trials, mailings, long distance charges, transcripts for appeals or record proper, duplication fees for audiotapes or compact discs, copy charges, publication fees, or facsimile services. Application for all other costs are to be made to the judge assigned to your case. If the applicant prevails in this law suit and collects money by judgment or settlement, the court may order reimbursement for any waived costs. If the applicant is represented by an attorney who is paid an attorney fee, any fees or costs waived by this order must be deducted from any such attorney fee and paid to the court clerk. **This order is subject to revision, modification, or rescission by the judge assigned to your case.**

JUDGE

[Adopted by Supreme Court Order No. 07-8300-043, effective February 25, 2008; as amended by Supreme Court Order No. 08-8300-031, effective November 17, 2008; by Supreme Court Order No. 10-8300-044, effective February 9, 2011; as amended by Supreme Court Order No. 17-8300022, effective for all cases pending or filed on or after December 31, 2017.]